DUBE MANIKAI AND HWACHA

Versus

CP CHEMICALS (PVT) LTD

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 27 and 29 July 2026

Opposed Application

T. Magwaliba for the plaintiff
Ms S. Ndhlovu for the defendant

CHILIMBE J

BACKGROUND

[1] Typically, a point *in limine* was raised on the brink of a hearing. Justifiably, it was dispositive of the matter. Insightfully, it raised the question, once again, as to whether rr 10 (1) and 12 (1) of the Commercial Court Rules[1], which require a defendant to file its plea simultaneously with, or before entering appearance to defend, are invalid.

[2] Mr *Magwaliba* for the plaintiff and mover of the point *in limine* argued that the rules concerned were fine. Ms *Ndhlovu* for the defendant was ardent that they were not. Unfortunately, Ms *Ndhlovu*`s challenge to the validity of the named ruled arose as a response or shield to the point *in limine*, rather than an attack or spear as observed in *Sumbureru v Chirunda* 1992 (1) ZLR 240 (H).

[3] As such, I did not receive, as further discussed hereunder, pleadings and legal argument commensurate with the task of striking down a statutory provision. The question thus remains open. Amidst discourse relating to the rules, and procedure in the Commercial Court, the

[1] High Court (Commercial Division) Rules SI 123/20 or "the Commercial Court Rules governing procedure in the Commercial Division of the High Court of Zimbabwe commonly referred to as the Commercial Court.

jurisdiction may reflect on the advice I rendered in the early days of the Division in *Rosenfeldt v The Brackenhills Trust & 4 Ors* HH 348-23 that; -

> "[111] But naturally, this remains an ongoing exercise that will benefit from input from legal practitioners. In fact, In Tanzania, the Commercial Court enjoys the services of a (purely advisory) Court Users Committee comprising of selected stakeholders."

THE DISPUTE BETWEEN THE PARTIES

[4] The plaintiff, ("DMH") is a firm of legal practitioners and defendant ("CP Chemicals" , an entity incorporated in terms of the laws of Zimbabwe. DMH instituted proceedings against CP Chemicals in this court seeking payment of US$390,362.45) claimed as fees due for legal services rendered. The claim was based on the collection commission rates as prescribed in terms of Section 70 (2) of the Law Society of Zimbabwe By-Laws,1982 (SI 314 of 1982).

[5] CP Chemicals defended the matter and pleadings were progressed to pre-trial stage. At the case management conference set down in terms of r 17 of the Commercial Court Rules Mr *Magwaliba*, for DMH contended in *limine,* that CP Chemicals was out of court for failure to file its plea timeously.

[6] Counsel proceeded to make an oral application for default judgment from the bar. Ms *Ndhlovu* for CP Chemicals protested that the objection and application had caught her by surprise. With the parties` consent, I directed that written submissions be filed and exchanged on the issues and they duly complied.

THE POINT *IN LIMINE*

[7] Mr *Magwaliba* argued that CP Chemicals` notice of appearance to defend and plea were irregularly filed in breach of the time and procedure set out in the rules. As such, it was at liberty to move for default judgment via an oral application. The defect was allegedly apparent from the following dateline which was common cause; -

i. 13 March 2026- summons commencing action and declaration filed.

ii. 23 March 2026 – service of summons on CP Chemicals.

iii. 31 March 2026- appearance to defend entered.

iv. 10 April 2026- plea filed

[8] According to Mr *Magwaliba*, the plea was filed 14 business days after service of summons in breach of r 12 (1) of the Commercial Court Rules. That rule obliged a defendant to file its plea within 7 days of service of summons. The last date to file the plea, according to counsel`s reckoning, was 1 April 2026.Rule 10 (1) and 12 (1) prescribe respectively that; -

> Rule 10 (1)
> The time within which a defendant shall be required to enter appearance to defend shall be **ten days** from the date of service, exclusive of the day of service.
>
> Rule 12 (1)
> (1) The defendant shall file a plea, exception, special plea or other answer within **seven days** of service of the plaintiff's summons and declaration issued and served under these rules.

[9] In that regard, Mr *Magwaliba* claimed that DMH was within its rights to apply for default judgment in terms of r 14 (1) of the Commercial Court. Rule 14 (1) allowed a plaintiff to apply for judgment in default for failure by defendant to file its plea in terms of the rules. Mr *Magwaliba*`s additional argument was that he could move such application from the bar in terms of his reading of the purview created by rr 19,25 and 26 of the Commercial Court Rules.

REPLY TO THE POINT *IN LIMINE*

[10] Ms *Ndhlovu* contested the point raised on behalf of DMH.The gist of her argument appears in paragraph 5 of her written submissions which I quote hereunder; -

> "There exists an apparent impracticality in the sequence of filing an Appearance to Defend and Plea. An Appearance to Defend is filed before a Plea. When an appearance to Defend has been allowed ten days, it is conflicted for the plea to only be allowed seven days. The rules of court sequentially address the Appearance to Defend first and the plea afterwards. The seven days allowed for a plea after service of summons are an apparent error. This is also with regard to Rule 14 (2) which requires all evidentiary documents to be filed with a plea. The seven days then become impractical as it would imply that documentary evidence is hurried in a manner that is not urgent."

[11] Ms *Ndhlovu* bolstered the contentions in the above excerpt with a number of further arguments which I summarise below; -

i. That the right to a fair hearing prescribed in s 69 (2) of the Constitution was "in issue".

ii. That the sequence prescribes by rr 10 (1) and 12 (1) of the Commercial Court rules that a plea be filed ahead of entry of appearance to defend was inconsistent with the established procedure in the jurisdiction as set out in the High Court Rules 2021.

iii. That applying various rules of interpretation, the court ought to adjudge rule 12 (1) of the Commercial Court Rules as defective and thus invalid.

iv. That to demonstrate the existence of an error, r 10 (1) prescribed a period of 7 days within which to enter appearance to defend. But it conflicted directly with addendum Form CC 1 for summons commencing action which accorded a defendant 7 days within which to enter an appearance to defence.

v. That in any event, the failure by a defendant to file its plea on time did not automatically trigger a default judgment.

vi. That the authority of *Garizio & 2 Ors v Motsi & Anor* HH 89-25 relied upon by Mr *Magwaliba* was distinguishable because it dealt with failure to file a plea.

vii. Finally, that by not earlier objecting and proceeding so far as to replicate, DMH had waived its rights to raise the question of a defective plea.

THE LAW

[12] Despite the spirited contentions raised by counsel, I believe this matter is relatively simple to dispose of. The obvious starting point being the preamble as well as rr 2 and 4 of the Commercial Court Rules which prescribe that all proceedings in the Commercial Court shall be regulated, unless otherwise stated, by the Commercial Court Rules.I set out the provisions concerned; -

> **Preamble**
> IT is hereby notified that the Minister of Justice, Legal and Parliamentary Affairs has, in terms of section 56 of the High Court Act [Chapter 7:06], hereinafter called "the Act" approved the following rules of court made by the Chief Justice, **to regulate the proceedings of the Commercial Division of the High Court**—
>
> Rule 2
> These rules shall come into operation on the 1st of May, 2022, and **shall have effect in relation to all proceedings of the Commercial Division of the High Court.**
>
> **Rule 4**
> 1) **These rules shall**, unless expressly provided otherwise, **apply to all commercial disputes brought before the Commercial Division of the High Court (hereinafter referred to as "the court").**
>
> (2) To the extent that any procedural matter arises during any proceedings before the court, which matter is not specifically regulated or provided for under these rules, then in such event the High Court Rules, 2021 (hereinafter referred to as "the High Court Rules") shall apply mutatis mutandis).

[13] These provisions are important. The Commercial Court is a stand-alone division whose purpose and import have been discussed in a number of decisions[2]. In *Blakey Investments*

[2] See *Inebriant Cache &Anor v French Smith* SC 89-24, *Rosenfeldt v The Brackenhills Trust & Ors* HH-348-23, *Kuzota Three Family Trust NO v Diamond Precision (Pvt) Ltd* HH-454-24, *Hashiti & Anor v Seedco Ltd* HH 615-24, and *Vevhu Resources (Pvt) Ltd & 3 Ors v Nyachowe* SC 35-26.

(Pty) Ltd v Delta Beverages Ltd & 2 Ors HH 388-23, MAFUSIRE J (as he then was) commented as follows at paragraphs 10-11; -

> "[f] *Principles, values and ethos of the Commercial Division*
>
> [10] The Commercial Division of the High Court of Zimbabwe was established in 2022 in accordance with s 46A of the High Court Act [*Chapter 7:06*]. It opened its doors to the public on 6 May 2022. It is governed by, among other things, its own set of Rules[3] as well as the High Court Rules, 2021 [SI 202 of 2021]. The broad rationale for establishing specialist divisions of a court is, among other things, to streamline and improve citizens' right of access to justice. With the Commercial Division in particular, it is the Judiciary's contribution to the ease of doing business in Zimbabwe in order to improve, among other things, the investment climate. The conception of this Division was with a view to quicken the process of adjudication of disputes of a commercial nature by, among other things, streamlining the rules of procedure. It is a division which, in the determination of the cases, is guided by certain principles and values.
>
> [11] In the Second Schedule to the Rules of the Commercial Court is a list of the core values or attributes. Relevant to this discourse are the values listed in Para 3(a) ('*reduction and simplification of processes*'), 3(b) '*curtailment and minimisation of costs and time*', 3(f) '*... ... increased efficiency'*, 3(g) '*new rules of procedure*' and 3(h) '*adaptability*'. Rule 4(3) requires that regard be had to these values in administering the Rules. Though the values themselves are not part of the Rules, nonetheless, it is expressly stated in the Second Schedule that the adjudication of disputes by, and the operation of the Division shall be guided by these values. Para 1 of the Second Schedule states that the establishment of the Commercial Court is designed to improve the ease of doing business in line with the criteria set by the World Bank so as to contribute towards the national effort in attracting local and foreign direct investment. Evidently, this is in line with international best practices.
>
> [12] Thus, the Commercial Court can be regarded as some kind of 'half-way house' between the strict formalism of the other divisions of the High Court and the liberalism of the alternative dispute resolution mechanisms such as arbitration. The Rules of the Commercial Division have gone some way in giving effect to its ethos, philosophy and character. For example, the concept of requesting, let alone applying, for further or further and better particulars to a pleading, a huge procedural step in the other divisions of the High Court, is expressly banned[4]. Litigants in the Commercial Division are required to place, right at the onset, together with their statements of claim or defence, the summary of their evidence and the list of the documents to be relied upon.[5] This is a whole new and radical concept, a new dispensation and, indeed a revolution in pleading. Fundamentally, and perhaps to

[3] High Court (Commercial Division) Rules, 2020, SI 123 of 2020, as amended by High Court (Commercial Division) (Amendment) Rules, 2022, SI 79 of 2022.
[4] Rule 12[2].
[5] Form No. CC 2.

> emphasise the requirement for a quick disposal rate of cases, in terms of r 17(2) the life of a case in the legal system is truncated to no more than ten to twelve months. Time limits for the filing of pleadings and the stages in the adjudication process are severely trimmed. For example, heads of argument in opposed matters should be no more than ten pages long.[6]"

[14] This background must properly inform any commentary, let alone attack on the Commercial Court Rules. The presumption of statutory validity applies to the rules of court being impugned herein. With these observations, I turn to the arguments raised by Ms *Ndhlovu* as summarised in paragraph [11] above; -

i. *Paragraph 5 of the written submissions and point (iii)*

[15] The arguments framed under this head are, with respect, not cogent. Counsel set out general statements regarding what the rules ought to prescribe rather than what they stated. Further, she adverted to corresponding rules in the High Court Rules 2021 overlooking the guidance in the preamble, and prescriptions in rr 2 nd 4 of the Commercial Court Rules.

ii. *That the right to a fair hearing prescribed in s 69 (2) of the Constitution was "in issue".*

[16] This argument was not followed up. If anything, it appeared counsel eventually abandoned it and as such, I will comment no further on it.

iii. *The alleged incongruency in the rules which require a plea ahead of appearance to defend and point (vi)*

[17] Firstly, as observed in *Garizio v Motsi*, the rules do not oblige, as a strict requirement, a defendant to file its a plea ahead of entry of appearance. The 2 stages can be undertaken simultaneously. In fact, the conscientious defendant may even enter appearance first, in the normal sequence, then file its plea afterward. As long as the dies regulating the filing of each pleading are observed. In *Garizio & Ors v Motsi & Anor* (supra) I had occasion to observe that; -

[6] Rule 36[7][a].

> "[11] It must be noted that in the Commercial Court, r 12 (1) grants the defendant a **lesser** period of **7 days** within which **to file its plea** after service of summons. Rule 10 (1) on the other hand, extends to the same defendant a longer period of **10 days** to file its **appearance to defend**. The rules say; -
>
> 10 (1) The time within which a defendant shall be required to enter **appearance to defend** shall be **ten days** from the date of service, exclusive of the day of service.
>
> 12 (1) The defendant shall **file a plea, exception, special plea or other answer** within **seven days** of service of the plaintiff's summons and declaration issued and served under these rules.
>
> [12] These simple requirements often confuse litigants, the parties now before me included. Yet the prescription in the rules is straightforward. Defendant; if you must file your appearance to defend and plea separately, then file the plea first (within 7 days) and the appearance afterward (but within 10 days).
>
> [13] Judgment was thus properly taken against the applicants in terms of r 14 for failure to file their plea within 7 days. Equally, the application for rescission was correctly moved under r 15 which deals with the setting aside of default judgments entered per r 14. This should dispose the preliminary arguments on that point. I now move to the application itself."

[18] This rendition, in my view, still rings as a correct interpretation of rr 10(1) and 12 (1) of the Commercial Court Rules. Secondly, and more fundamentally, the Supreme Court had, prior to *Garizio v Motsi*, already opined on rr 10 (1) and 12(1) of the Commercial Court as follows in *Lafarge Cement Zimbabwe Ltd v Chinhoyi Motorways (Pvt) Ltd SC & Anor* SC 56-23. BHUNU JA held s follows at paragraphs 14 and 15;

> "14. Summons was served on the applicant on 11 July 2022. It entered appearance to defend on 18 July 22. 11 July 2022 was a Monday. Excluding Saturday and Sunday, the applicant was supposed to file its plea by 20 July. Sitting as a single judge in chambers **I can perceive no reason or confusion as to why the applicant did not comply with the peremptory provisions of r 12 (1) which was directly relevant to the filing of its plea notwithstanding the provisions of r 10 which it had already complied with and was no longer relevant.**
>
> 15.I am therefore inclined to agree with the learned judge *a quo* **that while there might be a discrepancy in the way the two rules in question are crafted, that problem did not affect the applicant's compliance with both rules at all.** [underlined and marked in bold for emphasis]

[19] What is also important is that neither decision went so far as to strike down the provisions in the rules. The Supreme Court did note that possible anomaly existed in the requirement under the Commercial Court Rules for a party to file its plea ahead of an

appearance to defend. If there is some purpose (it very well be), then such is not immediately apparent. Perhaps consideration could be given to realigning the rule so as to rid it of the confusion as noted at commencement? But BHUNU JA observed that in their present state, the rules could be still be complied with.

iv. *The inconsistency between Form CC1 and r 10 (1) on 7 days and 10 days within which to enter appearance*

[20] This aspect ought not be difficult to address. Firstly, Form CC1 is not specific to the entry of appearance to defend. Rule 10 (1) deals with that aspect and must be accorded priority in determining the period within which appearance to defend should be entered. Secondly, the courts encourage effecting the necessary adjustments to cure any incongruency in the forms or to render them fit for purpose. (See *Marick Trading (Pvt) Ltd v Old Mutual Life Assurance Company of Zimbabwe (Pvt) Ltd* HH 667-15)

[21] Importantly, even based on its own arguments and reckoning, CP Chemicals filed its plea way out of time.

v. *Waiver of the requirements in the rules.*

[22] It is a trite position in our law that litigants are obliged to comply with rules of court. The party in breach cannot rely upon its opponent`s lack of diligence unless, the guilty party is perhaps seeking condonation. The effect of a breach is that party becomes barred or out of court unless such position is remedied.

[23] Waiver does not arise under the circumstances. Perhaps a matter for another day to understand how (a) how the plea came to be issued out of time, and (b) DMH failed to gatekeep and detect this default.

DISPOSITION

[24] Ms *Ndhlovu* set herself upon an onerous task. I am indebted to her otherwise commendable industry in that regard. But I am not satisfied that she did enough. The generic surveys of broad legal principles which counsel launched carried insufficient depth and focus to offer a meaningful challenge to the targeted provisions. I am unpersuaded by her contention that rr 10 (1) and 12 (1) of the Commercial Court Rules are invalid.

[25] It is therefore my conclusion that CP Chemicals`s plea was filed out of time. The preliminary objection is sustained. CP Chemicals are thus ruled to be in breach and out of court. With CP Chemicals out of court, they cannot properly mount an argument regarding how the matter ought to proceed as Ms *Ndhlovu* attempted to do. DMH are at liberty to proceed and pray for judgment in default per r 14 (1) of the Commercial Court Rules.

[26] Mr *Magwaliba* prayed for an order in terms of the summons basing his application on the purview of the court`s powers under r 19 of the Commercial Court Rules. Counsel did not cite the specific rule under r 19 possibly because there is none. I set out r 19 hereunder; -

> 19 Pre-trial case management hearings to be held when directed by a judge
> (1) Notwithstanding Rules 16, 17 or 18 above, at any time before any case is tried, the judge may direct parties to attend a pre- trial case management hearing to deal with any matters or issues arising in the suit or proceedings.
>
> (2) At such a pre-trial case management hearing, **the judge may consider any matter arising from the pleadings filed of record**, including the possibility of a settlement of all or any of the issues in the suit or proceedings and may require the parties to furnish the judge with any such further information as he or she considers necessary and expedient, **and may give all such other directions as he or she considers necessary or desirable for securing the just, expeditious and economical disposal or curtailment of the suit or proceedings.**
>
> (3) The judge may, having given directions under this Rule or Rule 20, on his or her own motion or upon the application by any party, if any party defaults in complying with any such directions, dismiss such suit or proceedings or strike out the defence or counterclaim or enter judgment or make such other order on the papers filed of record as he or she considers fit.
> (4) Any judgment or order made under sub rule (3) shall be deemed a default judgment and may be set aside on good and sufficient cause shown and, on such terms, as the judge considers just, on the application by the party against whom such judgment or order is made, and the provisions of Rule 15 shall apply to the extent possible.

> (5) The judge may at any time during a pre-trial case management conference where the parties are agreeable to a settlement of some or all of the matters in dispute in the suit or proceedings, record such agreement as an order of court or where the matter is settled in full, enter judgment in the suit or proceedings or make such other order to give effect to the settlement as may be required.
>
> (6) An order by consent issued under sub rule (5) shall not be set aside save in exceptional circumstances and on good and sufficient cause shown and the provisions of Rule 15 shall apply to the extent possible.

[27] I propose to take the expedient route availed in r 19 (2) and marked in bold in the excerpt above. That route entails directing DMH to approach a judge in chambers per rr 25 (2) (d) and 38 (2) of the Commercial Court Rules. As for costs, I see no basis to depart from the normal approach for costs to follow the event.

It is therefore ordered that; -

1. The point *in limine* raised by plaintiff regarding the defendant`s failure to file its plea within the period prescribed in the Commercial Court Rules, be and is hereby upheld.

2. The defendant, being in breach of rule 12 (1) of the Commercial Court Rules is declared out of court and the matter to proceed as unopposed.

3. Defendant to pay the costs of suit.

Dube Manikai and Hwacha-plaintiff`s legal practitioners
Ndhlovu and Pratt -defendant`s legal practioners.

[CHILIMBE J___28/07/26]